

1606
Oct. 11

with Sir Edward Dimmocke, procured some part of the land by assignment by indenture, and promised to have the statute for nonperformance of the covenants, and caused Bradshawe to extend the statute, and wrote to the Sheriff and jurors to extend it, and maintained the suit, and so committed maintenance and champerty. But Bradshawe, being the defendant, was never served with process, but kept in Dimmocke's house; and therefore the cause was adjourned until Bradshawe was produced in Court to answer the interrogatories *viva voce*.¹

THROG-
MORTEN
v
STAFFORD
and others
Misde-
meanour

[p. 209]

Sentence

Another cause of hearing between Sir Thomas Throgmorton, plaintiff, against Sir John Stafforde, Edward Poincs, and three others, defendants, for misdemeanour at the muster, principally against Edward Poincs.² At the general muster of trained men, one Chambers being called and present, Poincs said that he should not serve, being married to his sister, and drew his 'cemitere'; also his father Mathew Poincs, a man weak and aged, being a Justice of the Peace and one bound for his good behaviour, Edward Poincs signed³ a *supersedeas* with the hand and seal of his aged father, and made a recognizance, and returned it in the name of his father. And for this he was fined by the greater part of the Court 100 marks, imprisonment and [to be] bound for his good behaviour. Sir John Stafforde, being a Justice of the Peace, and having lost two bullocks, finding them in pasture, charged two men with stealing them. They denied it. He said they should be had before a Justice of the Peace to answer it. They refused to go, and he with a 'riding rodde' struck one of them 'crosse the face & made him to reele.' And for this he was fined £20, for it was a great offence because he was a Justice of the Peace and ought to keep the peace, and thus [he was] a bad example. But in the opinion of the Court it was a small cause, and fitter for another place

¹ See another case between the same parties, in which the Earl of Lincoln was plaintiff, *post*, May 6, 1607.

² See a cross bill between the same parties, *post*, p. 242.

³ *Assigne* in MS.